

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 3, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV03032

ZF SPV, LLC v. BYRD, et al.

ZF SPV, LLC’S MOTION TO LIFT STAY OF WRIT OF POSSESSION

The motion is denied. The parties’ settlement agreement (Kornbluh Declaration, Exhibit C) describes that the stay may be lifted and possession granted to plaintiff on default by buyers [“If escrow does not close pursuant to the terms of the executed RPA by reason of any Default by Buyers or failure of Buyers to timely remove any listed contingency, or mutual cancellation....”]. However, plaintiff has presented no evidence of default, only that escrow failed to close by June 15, 2026.

Further, due to the underlying facts of this case and the former homeowners’ allegations of financial elder abuse and unfair business practices by ZF SPV, LLC, the Court is not inclined to lift the stay without resolution of those claims in arbitration. Plaintiff’s objections to the Declaration of Stacie L. Power are immaterial to the Court’s ruling.

No. 26CV01116

CITY OF SANTA CRUZ v. TAPIA

PLAINTIFF’S MOTION TO SEAL

The motion is granted.